

		The Court's order shall become effective upon the filing of Proofs of Service of the signed order. (Code Civ. Proc. § 284; Cal. Rules of Court, rule 3.1362). The court has reviewed the materials submitted by Moving Counsel and finds that Moving Counsel has complied with the requirements of Rule 3.1362. The court sets an OSC on October 08, 2026, at 09:00 am re: why the answer of Defendants Jessica L King Certified Public Accountancy Corp. and JLK, LLC should not be stricken for failure to retain counsel as an unrepresented entity. Moving Counsel shall give notice to all parties and the clients of the court's ruling and the OSC.
1:30 p.m.		
1	Grossman vs. State Farm Mutual Automobile Insurance Company	Respondent State Farm Mutual Automobile Insurance Company moves to compel arbitration of claims brought by Claimant Michelle Grossman. For the following reasons, the unopposed motion is GRANTED. On 03/26/2026, this court continued the matter for Respondent to service process on Claimant Grossman. (ROA # 14.) State Farm filed has done so, filing proof of service of the petition and all moving papers on Claimant. (ROA # 22.) <u>Standard on Motions to Compel Arbitration</u> The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (<i>Ibid.</i>) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (<i>Ibid.</i>) Pursuant to Civil Procedure Code section 1281.2, the court must grant the petition unless it finds that one of the exceptions applies: (1) that no written agreement to arbitrate exists; (2) that the right to compel arbitration has been waived; (3) that grounds exist for revocation of the agreement; or (4) that litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (Code Civ. Proc., § 1281.2; <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219.)